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APPENDIX IV-A [See proviso to rule 8(6)]

SALE NOTICE FOR E-AUCTION OF IMMOVABLE PROPERTIES

A/c – Reynold Shirting Limited

E-Auction Sale Notice for Sale of Immovable Secured Assets under the Securitizations and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 ("SARFAESI Act") read with proviso to Rule 8 (6) of the Security Interest (Enforcement) Rules, 2002 ("Rules").

We, Catalyst Trusteeship Limited ("Debenture Trustee" / "Secured Creditor"), acting in its capacity as Debenture Trustee in trust and for the benefit of Debenture Holder viz. Edelweiss Asset Reconstruction Company Limited (Trustee of EARC Trust SC 462) ("**EARC**") ("**Debenture Holder**") under Debenture Trust Deed dated 14th October 2017 ("**Debenture Trust Deed**") ("**DTD**") executed with Reynold Shirting Limited ("**the Borrower**") ("**the Issuer**").

The debts of the Borrower together with underlying Security Interest has been assigned in favour of **Edelweiss Asset Reconstruction Company Limited / Debenture Holder acting in its capacity as the trustee of EARC Trust SC 462 ("EARC")** vide Assignment Agreement dated 23rd December 2022 by **CFM Asset Reconstruction Private Limited ("CFM ARC"/"Assignor")**. Pursuant to the said assignment, EARC stepped into the shoes of the Assignor and therefore exercises its rights as the secured creditor and sole Debenture Holder.

We had issued Demand Notice dated 5th November 2020 to **Reynold Shirting Limited** (Borrower and Pledgor); **Bombay Rayon Clothing Limited** (the "Hypothecator, Corporate Guarantor and Mortgagor"), **Ashwell Holding Company Private Limited** (the "Hypothecator and Pledgor"), **Mr. Aman Agrawal and Mr. Prashant Agrawal** (the "Mortgagors, Hypothecators, Pledgors and Personal Guarantors") (hereinafter collectively referred to as "**Security Providers**") under Section 13(2) of the said SARFAESI Act in respect of the Non-Convertible Debentures ("NCDs") issued by the Borrower.

Since you in your capacity as the Borrower alongwith other Security providers failed to pay the outstanding amount within 60 (sixty) days as demanded in the aforesaid Notice issued under Section 13(2) of SARFAESI Act, the Debenture Trustee in exercise of powers conferred under Section 13(4) of the SARFAESI Act read with Rule 8 and Rule 4 of the Rules, has taken symbolic possession on **24th day of April 2024** including the right to transfer by way of sale for realizing the dues of the secured assets described below.

The present notice is hereby given to the public in general and to the **Reynold Shirting Limited ("Borrower") Bombay Rayon Clothing Limited, Ashwell Holding Company Private Limited, Mr. Aman Agrawal and Mr. Prashant Agrawal ("Security Providers")**, that the below described immovable properties mortgaged to the Secured Creditor, the possession of which has been taken by the Authorised Officer ("**AO**") of Debenture Trustee, will be sold on "**As is where is**", "**As is what is**", "**Whatever there is**" and "**No recourse**" basis on **13th August 2024** for recovery of **Rs. 293,26,51,822/- (Rupees Two Hundred Ninety-Three Crores Twenty Six Lakh Fifty-One Thousand Eight Hundred Twenty Two only)** due and payable as on 30th April 2024 together with further interest and other expenses/costs thereon, payable by Borrower and its security providers till repayment/ realization.

The reserve price and earnest money deposit along with the details of e-auction and description of the immovable and movable property are as follows:

Lot	Reserve Price	Earnest Money Deposit (EMD)	Last Date of Submission of Expression of Interest	Date and time of e-Auction
Lot 1	Rs.172,00,00,000	Rs. 17,20,00,000	12th August, 2024	13th August, 2024 between 12:00 pm to 1:00 pm
Lot 2	Rs.19,72,44,000	Rs. 1,97,24,400	12th August, 2024	

Description of Secured Assets put for e-Auction:

Description of Lot 1 property:-All that piece or parcel of land bearing Plot No. D-8 in the Tarapur Industrial Area of Maharashtra Industrial Development Corporation (MIDC), within the village limits of Salwad, Taluka and District - Palghar, containing by admeasuring 2,74,745.80 square meters or thereabouts and bounded as follows:**On or towards the North by:**Drainage Strip, MIDC Road (R.W.30.50),**On or towards the South by:**MIDC Boundary & Plot No. K-6/3 to K-16 ,**On or towards the East by:**Plot No. D-7/2; and **On or towards the West by:**Plot No. D-8/1

Description of the Lot 2 property:- Residential premises being Flat No. 901 along with 2 car parking spaces B-901A and B-901B in Basement with 6.25% interest in common area of the building known as 9 JVPD constructed on the land bearing Sub-plot Nos. 8 & 9 forming part of Survey No.70 of Village Juhu, JVPD, Taluka Andheri, District Mumbai Sub-Urban District. Residential premises being Flat No. 902 along with Roof Top Terrace on South side, + 2 car parking spaces S-902A and S-902B in Basement, + 3 Car parking spaces on Podium (Level-2) Nos. P-902A, P-902B and P-902C + 2 stilt level Car parking spaces Nos. S-902C and S-902D with 6.25% interest in common area of the building known as 9 JVPD constructed on the land bearing Sub-Plot Nos.8 & 9 forming part of Survey No. 70 of Village Juhu, JVPD, Taluka Andheri, District Mumbai Sub-Urban District.

(Note: Flat No. 901 & 902 are combined into one Flat on 9th Floor)

For detailed terms and conditions of the sale, please refer to the link provided in **Catalyst Trusteeship Limited's** website i.e. <https://catalysttrustee.com/auction-notices/>. **Mr. Pankaj Rohilla**, Contact No. +91 9158364409,+91(022) 49220555, E-mail pankaj.rohilla@ctltrustee.com; catalystlegal@ctltrustee.com or **Ms. Khushboo Sikhwal**, Contact No.+91 7062793111, E-mail: khushboo.sikhwal@edelweissarc.in.

Sd/-

Date: 11.07.2024

Place: Mumbai

Authorized Officer

For Catalyst Trusteeship Limited

BID DOCUMENT FOR E-AUCTION

Whereas **Catalyst Trusteeship Limited (“Debenture Trustee”)**, acting in its capacity as Debenture Trustee in trust and for the benefit of Debenture Holder viz. Edelweiss Asset Reconstruction Company (Trustee of EARC Trust SC 462) (**“EARC”/“Debenture Holder”**) under Debenture Trust Deed dated 14th October 2017 (**“Debenture Trust Deed”/“DTD”**) executed with **Reynold Shirting Limited (“the Borrower”/ “the Issuer”)** acting through its Authorized Officer (**“Authorised Officer”**), in exercise of its power under Section 13(4) & 13(12) of the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 (**“SARFAESI Act”**) read with Rule 8 of Security Interest (enforcement) Rules, 2002 (**“Rules”**) has decided to sell through **e-Auction** of the Secured Assets mentioned in **ANNEXURE - I** for realization of the secured debt due to Catalyst Trusteeship Limited/EARC. The sale shall be subject to the conditions prescribed in the Security Interest (Enforcement) Rules 2002 and to the following further conditions:

Auctioneer Name	:	Catalyst Trusteeship Limited, GDA House, First Floor, Plot No. 85, S. No. 94 & 95, Bhusari Colony (Right), Kothrud, Pune, Maharashtra, Pin – 411038 and having its corporate office at Unit No. 901, 9th Floor, Tower – B, Peninsula Business Park, Senapati Bapat Marg, Lower Parel (W), Mumbai - 400013, Maharashtra. Represented by its Authorised Representative, Mr. Pankaj Rohilla.
Auction to be conducted by	:	M/S e-Procurement Technologies Pvt. Ltd. (Auction Tiger) (“Service Provider “) B-705, Wall Street II, Opp. Orient Club, Near Gujrat College, Ellis Bridge, Ahmedabad – 380 006 Gujrat (India).
Auction Schedule	:	Date of e-Auction: 13th August 2024 Timings: As per the E-Auction Notice & Terms and Conditions published. Auction Website: https://sarfaesi.auctiontiger.net
Annexure	:	1. Terms & conditions of e-Auction (Annexure – I) 2. Details of Bidder (Annexure – II) <u>Instruction:</u> This document is required to be duly filled in and signed by the bidder and thereafter uploaded on the website https://sarfaesi.auctiontiger.net during the time of submission of the bid.

	3. Declaration by Bidder (Annexure – III) <u>Instruction:</u> This document is required to be duly filled in and signed by the bidder and thereafter uploaded on the website https://sarfaesi.auctiontiger.net during the time of submission of the bid. 4. Confirmation by Bidder Regarding Receipt of Training (Annexure – IV) <u>Instruction:</u> This document is required to be duly filled in and signed by the bidder and thereafter uploaded on the website https://sarfaesi.auctiontiger.net just after availing training on e-Auction. 5. Price Confirmation Letter by H1 Bidder (Annexure – V) <u>Instruction:</u> This document is required to be duly filled in and signed by the H1 bidder and thereafter e-mail scanned letter to the Authorised Officer, Catalyst Trusteeship Limited mentioned the website https://sarfaesi.auctiontiger.net immediately on completion of the bidding.
Special Instructions	: <u>Bidding in the last minutes and seconds should be avoided in the bidder's own interest. Neither the Service Provider nor Catalyst Trusteeship Limited will be responsible for any lapses / failure on the part of the Bidder, in such cases.</u>

INTRODUCTION

1. Catalyst Trusteeship Limited is a company incorporated under the Companies Act, 1956, acting as debenture trustee ("**Debenture Trustee**") for 1700 secured, redeemable, non-convertible debentures of face value of INR 10,00,000/- (Indian Rupees Ten Lakh only) each, aggregating to INR 170,00,00,000/- (Indian Rupees One Hundred and Seventy Crore only) ("**NCDs**" / "**Debentures**") under the Debenture Trustee Agreement dated October 12, 2017 ("**Debenture Trustee Agreement**") executed with Reynold Shirting Limited ("**Borrower**").
2. Pursuant thereto, a Debenture Trust Deed dated October 14, 2017 ("**Debenture Trust Deed**") was executed between the Borrower in its capacity as the Issuer and the Debenture Trustee whereunder, the Debenture Trustee was entrusted with duties for the benefit of the debenture holders under the terms and conditions set out therein. In consideration of the Debentures and to secure all the outstanding Obligations thereunder, various security documents were executed in favour of the Debenture Trustee by the **Reynold Shirting Limited** ("**Borrower/Pledgor**"), **Mr. Aman Agrawal** and **Mr. Prashant Agrawal** (the "**Mortgagors, Hypothecator, Pledgor and Personal Guarantor**"), **Bombay Rayon Clothing Limited** (the "**Hypothecator, Corporate Guarantor and Mortgagor**") and **Ashwell Holding Company Private Limited** ("**the Hypothecator and Pledgor**") (hereinafter collectively referred to as the "**Security providers**") and created inter alia the securities and mortgaged the secured assets more fully provided in the **Annexure -I** hereto.
3. On, August 14, 2020, the said NCDs along with all underlying securities interest / rights were assigned by the ECL Finance Limited ("**ECLFL**") to CFM Asset Reconstruction Private Limited, acting in its capacity as trustee of the CFMARC Trust-1 ("**CFM ARC**") under the Assignment Agreement dated 14th August 2020. Thereafter, on 23rd December 2022, the said NCDs along with all underlying securities interest / rights were assigned by CFM ARC to Edelweiss Asset Reconstruction Company Limited (EARC) acting in its capacity of Trustee of EARC Trust – SC 462 ("**Debenture Holder**" / "**EARC**").
4. Thus, **Debenture Trustee /Debenture Holder** has the absolute right, title interest and authority to recover all the monies owed by the Borrower to the Assignor and to enforce the securities created by the Borrower, Guarantors and / Security Providers in favor of the original lenders (through Debenture Trustee). Therefore, for all practical purposes, EARC would be treated as if it has stepped into the shoes of the Assignor and as Debenture Holder.
5. The Debenture Trustee in exercise of powers conferred under Section 13(12) of the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 ("**SARFAESI Act**") read with Rule 3 of Security Interest (Enforcement) Rules, 2002 ("**Rules**") had issued Demand Notice dated 5th November 2020 under Section 13(2) of the SARFAESI Act in respect of the NCDs issued by Borrower; calling upon the Borrower and its security providers to repay the aggregate amount mentioned in the Demand Notice together with further

interests and default interests at the contractual rate from the said date till actual payment or realization, with all other costs, default interest, charges and incidental expenses, etc. payable thereon, in respect of the Debentures under the Debenture Trust Deed and other Debenture Documents and Security Documents, within a period of 60 (sixty) days from date of the said notice.

6. Since, the Borrower along with its security providers failed to pay the outstanding dues within 60 days (Sixty) days as demanded in the aforesaid notice issued under Section 13(2) of the SARFAESI Act, the Debenture Trustee in exercise of powers conferred under **Section 13(4)** of the SARFAESI Act read with Rule 8 and Rule 4 of the Rules, has taken symbolic possession of the secured asset on **24th April 2024** including the right to transfer by way of sale for realizing the dues.
7. Further, a final opportunity was also given to the Borrower and Security Providers vide an **Intimation for Sale Notice** dated **14th May 2024** under Rule 8(6) of Security Interest (Enforcement) Rules, 2002 to repay within 30 (Thirty) days the total outstanding amounts due to EARC with further interest at contractual rate from the said date till actual realization along with other charges/expenses/costs, thereon, failing which, the Debenture Trustee shall proceed with e-Auction of the secured assets.
8. The immovable property is now being put up for e-auction sale vide e-auction notice dated **11th July 2024** published in Free Press Journal (English, Mumbai edition) and Navshakti (Marathi, Mumbai edition) The said immovable property put for e-auction sale shall be hereinafter referred to as the "Secured Asset" and is described hereinafter. The date of e-Auction being 13th August 2024, from 12:00 pm to 1:00 pm.
9. The amounts outstanding and liable to be paid as on 30th April 2024, by the Borrower and / or Security Providers to the Secured Creditor are INR 293,26,51,822/- (Indian Rupees Two Hundred Ninety-Three Crores Twenty-Six Lakh Fifty-One Thousand Eight Hundred Twenty-Two only), together with further interest and other expenses/costs thereon, towards the dues of EARC as per E-auction Sale Notice dated **11th July 2024**
10. The details of the Secured Asset of the Borrower put on sale are mentioned hereinafter:

BREIF DESCRIPTION OF THE SECURED ASSETS PUT FOR E-AUCTION:

Description of Lot 1 Property	
All that piece or parcel of land bearing Plot No. D-8 in the Tarapur Industrial Area of Maharashtra Industrial Development Corporation (MIDC), within the village limits of Salwad, Taluka and District – Palghar, containing by admeasuring 2,74,745.80 square meters or thereabouts and bounded as follows:	
On or towards the North by	: Drainage Strip, MIDC Road (R.W.30.50)
On or towards the South by	: MIDC Boundary & Plot No. K-6/3 to K-16
On or towards the East by	: Plot No. D-7/2; and
On or towards the West by	: Plot No. D-8/1
Description of Lot 2 Properties	
Residential premises being Flat No. 901 along with 2 car parking spaces B-901A and B-901B in Basement with 6.25% interest in common area of the building known as 9 JVPD constructed on the land bearing Sub-plot Nos. 8 & 9 forming part of Survey No. 70 of Village Juhu, JVPD, Taluka Andheri, District Mumba Sub-Urban District.	
Residential premises being Flat No. 902 along with Roof Top Terrace on South side, + 2 car parking spaces S-902A and S-902B in Basement, + 3 Car parking spaces on Podium (Level-2) Nos. P-902A, P-902B and P-902C + 2 stilt level Car parking spaces Nos. S-902C and S-902D with 6.25% interest in common area of the building known as 9 JVPD constructed on the land bearing Sub-Plot Nos. 8 & 9 forming part of Survey No. 70 of Village Juhu, JVPD, Taluka Andheri, District Mumbai Sub-Urban District.	
<i>(Note: Flat No. 901 & 902 are combined into one Flat on 9th Floor)</i>	

ANNEXURE - I

A. E-AUCTION BIDDING TERMS & CONDITIONS:

1. Computerized e-Auction shall be conducted by the service provider **by M/s. e-Procurement Technologies Pvt. Ltd. - Auction Tiger ("Service provider")** on behalf of **Catalyst Trusteeship Limited**, on a pre-specified date, while the bidders shall be quoting from their own offices / place of their choice. Internet connectivity and other paraphernalia requirements shall have to be ensured by the bidders themselves. Please note that failure of Internet connectivity (due to any reason whatsoever it may be) shall be sole responsibility of bidders and neither Catalyst Trusteeship Limited nor Debenture Holder i.e. Edelweiss Asset Reconstruction Company Limited shall be responsible for these unforeseen circumstances. **In order to ward off such contingent situations, bidders are requested to make all the necessary arrangements / alternatives, whatever required so that they can circumvent such situation and be able to participate in the e-Auction successfully. However, the Bidders are requested to not to wait till the last moment to quote their bids to avoid any such complex situations.**
2. The **Service Provider** shall arrange to train the Bidder(s), without any cost. **Service Provider** shall acquaint Bidder regarding the bidding process, functions and e-Auction rules. All the bidders are required to ensure compliance regarding receipt of training before the start of the bid process.
3. **Property for Bid:** Sale of following Secured Assets by Catalyst Trusteeship Limited on behalf of Debenture Holder i.e. Edelweiss Asset Reconstruction Company Limited under SARFAESI Act, 2002 r/w the Security Interest (Enforcement) Rules, 2002 –

Lot No.	Description of Property	Reserve Price (In INR)	Earnest Money Deposit (EMD) Amount (In INR)
1.	All that piece or parcel of land bearing Plot No. D-8 in the Tarapur Industrial Area of Maharashtra Industrial Development Corporation (MIDC), within the village limits of Salwad, Taluka and District – Palghar, containing by admeasuring 2,74,745.80 square meters or thereabouts and bounded as follows: On or towards North by: Drainage Strip, MIDC Road (R.W.30.50)	172,00,00,000	17,20,00,000

	On or towards South by: MIDC Boundary & Plot No. K-6/3 to K-16 On or towards East by: Plot No. D-7/2; and On or towards West by: Plot No. D-8/1		
2.	Residential premises being Flat No. 901 along with 2 car parking spaces B-901A and B-901B in Basement with 6.25% interest in common area of the building known as 9 JVPD constructed on the land bearing Sub-plot Nos. 8 & 9 forming part of Survey No. 70 of Village Juhu, JVPD, Taluka Andheri, District Mumba Sub-Urban District. Residential premises being Flat No. 902 along with Roof Top Terrace on South side, + 2 car parking spaces S-902A and S-902B in Basement, + 3 Car parking spaces on Podium (Level-2) Nos. P-902A, P-902B and P-902C + 2 stilt level Car parking spaces Nos. S-902C and S-902D with 6.25% interest in common area of the building known as 9 JVPD constructed on the land bearing Sub-Plot Nos. 8 & 9 forming part of Survey No. 70 of Village Juhu, JVPD, Taluka Andheri, District Mumbai Sub-Urban District. <i>(Note: Flat No. 901 & 902 are combined into one Flat on 9th Floor)</i>	19,72,44,000	1,97,24,400

4. **Type of Auction:** e-Auction
5. **Bidding Currency & Unit of Measurement:** Bidding will be conducted in Indian Rupees (INR) Only.
6. **Starting (Opening) Price / Bid Increment:** The opening price of the auction and the bid Increment value shall be available to the bidders on their bidding screen. The bid increment value will be INR 10,00,000/- (Indian Rupees Ten Lakh Only), i.e. each bid must be increased by a minimum of INR 10,00,000/- (Indian Rupees Ten Lakh Only).
7. **Bid Price:** The Bidder must quote the total price.
8. **Procedure of e-Auctioning:**
 - i. **e-Form Submission:** All interested bidders need to fill in an online form available on e-Auction domain with necessary details.

ii. **Online e-Auction:**

- Catalyst Trusteeship Limited will declare its **Opening Price (OP)**, which shall be visible to the all Bidders during the start of the e-Auction. Please note that the start price of an item in online e-Auction is open to all the participating bidders. Any bidder can start bidding, in the online e-Auction, from the start price itself. Hence, the first online bid that comes in the system during the online e-Auction can be equal to the auction's start price, or higher than the auction's start price by one increment, or higher than the auction's start price by multiples of increment. The second online bid and onwards will have to be higher than the H1 rate by one increment value, or higher than the H1 rate by multiples of the increment value.
 - The **“Bid Increase Amount”** has been fixed in respect of the secured asset which the Bidders can view on their bidding screen and the bidders will have to increase the bid amount in the multiple of **“Bid Increase Amount/ Bid Incremental Value”**. The minimum bid increment shall be by INR 10,00,000/- (Indian Rupees Ten Lakh Only).
 - If a Bidder places a bid in the last 5 (five) minutes of closing of the e-Auction and if that bid gets accepted, then the auction's duration shall automatically get extended for another 5 (five) minutes, from the time that bid comes in. Please note that the auto-extension shall be for unlimited times and will take place only if a valid bid comes in the last 5 (five) minutes of closing. If a valid bid is not received, the auto-extension will not take place even if that bid might have come in the last 5 (five) minutes. In case there is no bid in the last 5 (five) minutes of closing of e-Auction, the auction shall close automatically without any extension. **However, bidders are advised not to wait till the last minute or last few seconds to enter their bid during the auto-extension period to avoid complications related to internet connectivity, network problems, system crash down, power failures, etc.**
9. During e-Auction, if no bid is received within the specified time, Catalyst Trusteeship Limited at its discretion may decide to revise Opening price / scrap the e-Auction process / proceed with conventional mode of tendering.
10. The bid once submitted by the Bidder, cannot be cancelled / withdrawn and the Bidder shall be bound to buy the secured Asset at the final bid price. **The failure on part of the Bidder to comply with any of the terms and conditions of the e-auction notice and Tender Document will result in forfeiture of the amount paid by the defaulting Bidder.**
11. The Bidders will be able to view the following on their screen along with the necessary fields in the e-Auction:
- a. Leading Bid in the Auction (H1 – Highest Rate)
 - b. Bid Placed by bidder

- c. Opening Price & Minimum Increment Value.
 - d. The bid rank of bidder in the auction.
12. The decision of the Catalyst Trusteeship Limited / EARC regarding declaration of Successful Bidder shall be final and binding on all the Bidders.
13. The Catalyst Trusteeship Limited/EARC shall be at liberty to cancel the e-Auction process / tender at any time, before declaring the successful bidder, without assigning any reason.
14. The Catalyst Trusteeship Limited /EARC/ Service Provider shall not have any liability towards bidders for any interruption or delay in access to the site irrespective of the cause.
15. The bidders are required to submit acceptance of the terms & conditions and modality of e-Auction given above before participating in the e-Auction in **Annexure III**.
16. **Duration of Auction:** The auction of secured assets is scheduled to be conducted on Tuesday, 13th August 2024 from 12:00 pm to 1:00 pm specified in the E-auction notice published in the newspapers. There will be unlimited extensions of 5 (five) minutes duration each if any valid bid is received in the last 5 (five) minutes of the close of auction. The bidders are cautioned not to wait till the last minute or last few seconds to enter their bid to avoid complications related to internet connectivity, network problems, system crash down, power failures, etc.
17. **Successful bidder:** At the end of the E-Auction, Catalyst Trusteeship Limited on behalf of EARC will evaluate all the bids submitted and will decide upon the successful bidder. Catalyst Trusteeship Limited's decision will be final & binding on all the bidders.

B. TERMS & CONDITIONS FOR SALE OF PROPERTY:

1. The e-Auction sale of Secured Assets is on "as is where is" basis, "as is what is" basis, "whatever there is" basis and "no recourse" basis for and on behalf of Catalyst Trusteeship Limited acting in its capacity as Debenture Trustee on behalf of sole Debenture Holder, Edelweiss Asset Reconstruction Company Limited (EARC) acting in the capacity as Trustee of EARC Trust – SC 428 ("EARC").
2. In respect of Secured Assets, **INR 293,26,51,822/- (Indian Rupees Two Hundred Ninety-Three Crores Twenty-Six Lakh Fifty-One Thousand Eight Hundred Twenty-Two only)**, is due to the Debenture Holder for the financial assistance availed by **M/s Reynold Shirting Limited** as on 30th April 2024, together with further interest and other expenses/costs thereon till repayment/ realization.

3. Bid document containing detailed terms and conditions of sale can be obtained from <https://sarfaesi.auctiontiger.net> or from Authorised Officer by sending request on the following email Ids being, pankaj.rohilla@ctltrustee.com; catalystlegal@ctltrustee.com & Khushboo.sikhw@edelweissarc.in on any working day from 10:00 AM to 6:00 PM.
4. The Bidders shall be allowed to inspect the title documents pertaining to the Secured Assets by making a request to the Authorised Officer. The inspection shall take place at Catalyst Trusteeship Limited's office in Mumbai situated at Unit No. 901, 9th Floor, Tower – B, Peninsula Business Park, Senapati Bapat Marg, Lower Parel (W), Mumbai - 400013, Maharashtra, during the due diligence period i.e. between 11:00 A.M. to 5:00 PM on working days.
5. For participating in online e-auction sale, EMD amount as specified in auction notice has to be paid by way of **RTGS/NEFT** in the name of Catalyst Trusteeship Limited, Bank Name - Axis Bank Ltd, Account No. – 914020039889735, IFSC Code No. UTIB00000004, Branch – Mumbai Fort on or before **12th August, 2024** and Bid document, along with copies of PAN Card, Board Resolution in case of Company, Photo ID, and Address proof and are required to be submitted to **Catalyst Trusteeship Limited or Debenture Holder i.e. EARC** in a password protected PDF file. Further any EMD submitted by the bidder will be required to send the UTR/Ref number of the RTGS/NEFT with a copy of cancelled cheque. Once the Bid document is submitted by the Bidder, the same cannot be withdrawn. Further if any EMD is submitted by Bidder, Bidder will be required to send the UTR/Ref Number of the RTGS/NEFT with a copy of cancelled cheque and with the documents mentioned above on the E-mail IDs i.e., pankaj.rohilla@ctltrustee.com; catalystlegal@ctltrustee.com and Khushboo.sikhw@edelweissarc.in.
6. The Secured Asset shall be sold by the undersigned by way of **Electronic Public Auction on 13th August, 2024** through **M/s. e-Procurement Technologies Pvt. Ltd. - Auction Tiger ("Service provider")** at their website/portal i.e. <https://sarfaesi.auctiontiger.net> with auto extension clause, i.e. the end time of e-Auction will be extended by 5 (five) minutes each time if bid is made before close of e-Auction.
7. The EMD will not carry any interest. EMD of unsuccessful bidder shall be refunded within 5 (five) working days from the date of E-Auction.
8. The bidders may participate in the e-auction from their own office/place of their choice. Internet connectivity shall have to be arranged by each bidder himself/itself. The Authorised Officer of Catalyst Trusteeship Ltd. and/or the service provider and/or the EARC shall not be held responsible for the internet connectivity, network problems, system crash down, power failure etc.

9. For details, help, procedure and online training on e-auction, prospective bidders may contact on below mentioned details:

Name of Auction Agency	E-Procurement Technologies Ltd - Auction Tiger
Company Address	B-704, Wall Street - II, Opp. Orient Club, Nr. Gujarat College, Ellis Bridge, Ahmedabad - 380 006 Gujarat (India)
Bidder Help Desk Numbers	09265562821, 09265562818, 09978591888
Email Id	arc@auctiontiger.net , support@auctiontiger.net
eAuction Portal	https://edelweissarc.auctiontiger.net

10. The bidder will be required to submit the bid either at or above the reserve price in the prescribed manner as mentioned in **Annexure II** along with the EMD amount. In case the bidder fails to submit the bid online, then the bid amount submitted in **Annexure II** shall be treated as final bid from the respective bidder. In case of any non-submission of bid in **Annexure II** / discrepancy in bid submitted in **Annexure II**, the reserve price shall be treated as final bid from the respective bidder.
11. Only the top 3 (three) Bidders will have the opportunity to increase their offers on the opening of the Bids. However, the Authorised Officer reserves the right to allow other bidders to participate and increase their respective bids. The successful Bidder will be required to deposit 25% (Twenty-Five Percent) of the sale price (including the EMD already deposited) immediately on confirmation of sale or on the next working day i.e. on or before **14th August 2024** and the balance 75% (Seventy-Five Percent) amount of the sale price is to be paid within 15 (fifteen) days of the confirmation of the sale, i.e. on or before **29th August 2024**. In case of failure to deposit the balance amount within the prescribed period, the amount of EMD and/or deposited amount shall stand forfeited, and no claim shall be entertained against EARC in respect thereof.
12. The time for payment of balance 75% (Seventy-Five Percent) sale consideration can be extended till 90 (ninety) days from the date of confirmation of the sale. The limit of 90 (ninety) days for deposit of balance 75% (Seventy-Five Percent) of sale consideration is the outer limit which can be granted/rejected by the Authorized Officer/Secured Creditor to a Successful Bidder on merits of each case. Successful Bidder cannot construe it as matter of right in each & every case. It is advised to complete the payment in an initial 15 (fifteen) days as mentioned in the aforesaid term Paragraph No. 11. All the decisions of the Authorised Officer in respect of extension shall be binding upon the Purchaser/ Successful Bidder. In case of failure to deposit the balance amount within the prescribed period, the EMD/amount deposited till such timeline/s shall stand forfeited and no claim shall be entertained against EARC in respect thereof.

13. The Authorized Officer reserves the absolute right and discretion to accept or reject any or all Bids or adjourn/postpone/cancel the sale/modify any terms and conditions of the sale without prior notice and/or without assigning any reasons in respect thereof. In case all the bids are rejected, the Authorised Officer can negotiate with any of the bidders or other parties for the sale of the Secured Asset. The decision of the **Authorised Officer** in this regard shall be final and binding.
14. The Secured Assets mentioned in the Bid Document are based on the charges/mortgages created by the Borrower/Security Providers in favour of Secured Creditor. Interested parties are requested to verify details of the Secured Asset.
15. The Secured Asset is being sold free from charges and encumbrances of Secured Creditor only.
16. The successful bidder would be required to bear all the necessary expenses like stamp duty, registration, incidental costs, expenses including sales tax and any other taxes relating to the sale and transfer of Secured Assets.
17. The Authorised Officer of Catalyst Trusteeship Limited or EARC will not be held responsible for any charge, lien, encumbrance, property tax or any dues to the Government or anybody in respect of the Secured Assets.
18. The Authorised Officer of Catalyst Trusteeship Limited or EARC is not aware of any other known statutory liabilities relating to the Secured Assets. If any such other statutory liabilities are discovered at a subsequent stage, the same shall be solely dealt with by the Successful Bidder at his own costs and expenses.
19. The sale of the Secured Asset is subject to the terms and conditions prescribed in the SARFAESI Act and Security Interest (Enforcement) Rules, 2002 and the conditions mentioned hereinabove.
20. In case there is a discrepancy between the publications of sale notice in English and Vernacular Newspaper, then in such case the English newspaper will supersede the vernacular newspaper and it shall be considered as the final copy, thus removing the ambiguity.
21. The Borrower/Security Providers may treat this as a **30-days' Sale Notice** under proviso to Rule 8(6) read with Rule 9 (1) of the Security Interest (Enforcement) Rules, 2002. The Borrower and/or Security Providers are hereby given a last and final opportunity to discharge the liability in full as stated above within **30 (thirty) days from the date of this notice** and redeem the mortgage over the Secured Assets failing which the Secured Assets will be sold as per the terms and conditions mentioned above.

22. The Borrower's attention is invited to the provisions of sub-section (8) of Section 13 of the SARFAESI Act, in respect of time available, to redeem the secured assets.

23. For any further clarifications regarding the sale, please contact +91 9158364409, +91 (022) 49220555 / +91 7062793111 or Email at pankaj.rohilla@ctltrustee.com; catalystlegal@ctltrustee.com / Khushboo.sikhwali@edelweissarc.in

C. OTHER TERMS & CONDITIONS FOR SALE OF PROPERTY:

1. The Authorised Officer exercising the powers under the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 read with Security Interest (Enforcement) Rules, 2002 is selling the Secured Assets on as is where is" basis, "as is what is" basis, "whatever there is" basis and "no recourse" and the same is being sold free from charges and encumbrances of the Secured Creditor only. Any other liabilities, including statutory liabilities if any associated with the Secured Asset shall be borne wholly by the purchaser only. The Sale shall take place after expiry of 30 (thirty) days from the date of publication of the sale notice in newspapers.
2. The Sale shall not take place below the Reserve Price.
3. On confirmation of sale and if the terms of payment have been complied with, the Authorised Officer exercising the power of sale shall issue a Certificate of Sale of the Secured Asset in favour of the purchaser in terms of the Security Interest (Enforcement) Rules, 2002.
4. The sale is on as is where is" basis, "as is what is" basis, "whatever there is" basis and "no recourse". The Authorised Officers of Catalyst Trusteeship Limited have taken symbolic possession of the secured assets on 24th April 2024. On completion of sale, i.e. of receipt of full sale consideration, the Authorised Officer shall issue a Certificate of Sale under the SARFAESI Act in favour of the successful bidder.
5. The Authorised Officer does not take any responsibility for procuring any permission, etc. or for the dues of any authority established by law. The Secured Assets are being sold free from charges and encumbrances of Secured Creditor only.
6. The Interested Buyers/Prospective Bidders may carry out their own due diligence. They may also verify at their own cost and in their own interest the area of asset, any fixtures, and any other relevant information before submitting the Bids. They may inspect the records relating to the mortgage available with the Authorised Officer

with prior appointment of Authorised Officer. The Authorised Officer/Secured Creditor shall not be responsible for any error, misstatement, omission in the description of the Secured Asset.

7. The Interested Buyers/Prospective Bidders shall be deemed to have full knowledge of the relevant documents, Secured Asset etc. whether he/she inspects or visits or not.
8. All disputes arising amongst the parties shall be adjudicated according to Indian Law and the Courts in Mumbai alone shall have jurisdiction to entertain /adjudicate such disputes.
9. Nomination/endorsement by successful bidder will be permitted up to the date of confirmation of sale.

Sd/-

Authorised Officer

GENERAL INSTRUCTIONS FOR E-AUCTION

Note: Bidder(s) will have to go through the ANNEXURES uploaded on the Web Portal (<https://sarfaesi.auctiontiger.net>) and follow the following procedures:

Annexure – II: All the Prospective Bidder(s) will have to –

- Get the printout
- Fill it up and sign
- Upload the scanned copy while submitting the bid.

Annexure – III: All the Prospective Bidder(s) will have to -

- Get the printout
- Fill it up and sign
- Upload the scanned copy while submitting the bid.

Annexure – IV: Just after receiving Training on e-Auction, Bidder(s) will have to:

- Get the printout
- Fill it up and sign
- Upload the scanned copy after receiving the training.

Annexure – V: Just after the completion of e-Bidding Process, the H1 Bidder will have to:

- Get the printout
 - Fill it up and sign
 - Email the scanned copy to the Authorised Officer of Catalyst Trusteeship Ltd/EARC mentioned in the website <https://sarfaesi.auctiontiger.net> immediately on completion of the bidding.
-

ANNEXURE-II
DETAILS OF BIDDER

(Read the terms and conditions of sale carefully before filling-up and submitting the bid)

1.	Name(s) of Bidder (in Capital) / Name of Organization (in Capital)	
2.	Father's / Husband's Name <i>(Applicable only if the bidder is an individual)</i>	
3.	Postal Address of Bidder(s)	
4.	Phone Number and E-mail ID	
5.	Bid Amount <i>(Bid amount should be equal to or higher than the Reserve Price)</i>	
6.	EMD Amount	
7.	Bank Account details of the Bidder (Provide bank details to which the EMD has to be refunded)	Bank Name: Branch: Account Holder Name: Bank A/c No.: IFSC Code:
8.	Date of submission of bid	
9.	PAN Number	
10.	EMD remittance details*	Date of remittance: Name of Bank: Branch: A/c. No.: IFSC Code No.:

Name and Particulars of the Person or Company on whose behalf the Secured Asset are to be purchased

Brief profile of the Bidder / Purchaser

I/We declare that I/We have read and understood all the above terms and conditions of e-auction sale and the auction notice published in the daily newspaper which are also available on the website <https://sarfaesi.auctiontiger.net> and shall abide by them. We have further perused the relevant paper/documents and carried out my/our own due diligence. In case any information is found to be incorrect, I/we shall not hold the Authorised Officer of Catalyst Trusteeship Limited or/and EARC Trust SC 462 or/and EARC responsible for the same and shall not have any claim against either of them. I/We also undertake to improve my/our bid by one bid incremental value notified in the sale notice if I/We am/are the sole successful bidder.

In case our Bid for purchase of Secured asset is accepted by the Authorised Officer of Catalyst Trusteeship Limited, acting in its capacity as Debenture Trustee in trust and for the benefit of Debenture Holder viz. Edelweiss Asset Reconstruction Company (Trustee of EARC Trust SC 462), I/We am/are solely responsible for all formalities and legal obligations related to payment of stamp duty, registration of sale certificate and payment of sales tax leviable and payable as per the laws of the land on sale of Secured Asset. All the necessary taxes and expenses like stamp duty, registration expenses, sales tax, etc. for transfer of Secured asset in my/our name will be paid by me/us.

Date: _____

Place _____

.....

(Name & Signature of the Bidder)

***Mandatory: Bidders are advised to preserve the EMD Remittance Challan.**

Note: This document is required to be duly filled in and signed by the bidder and thereafter uploaded on the website <https://sarfaesi.auctiontiger.net> during the time of submission of the bid.

ANNEXURE-III

DECLARATION BY BIDDER (S)

To,

Date:

The Authorised Officer,

Catalyst Trusteeship Limited,

acting in its capacity as Debenture Trustee
in trust and for the benefit of Debenture
Holder viz. Edelweiss Asset Reconstruction
Company (Trustee of EARC Trust SC 462) at
GDA House, First Floor, Plot No. 85, S. No.
94 & 95, Bhusari Colony (Right), Kothrud,
Pune – 411038, Maharashtra and having its
corporate office at Unit No. 901, 9th Floor,
Tower – B, Peninsula Business Park,
Senapati Bapat Marg, Lower Parel (W),
Mumbai - 400013, Maharashtra.

Dear Madam/ Sir,

1. I/We, the bidder/s do hereby state that, I/We have read the entire terms and conditions of the sale and have understood them fully. I/We hereby unconditionally agree to abide with and to be bound by the said terms and conditions and agree to take part in the Online Auction. I/We further declare that I/We intend to purchase the Secured Asset from the Authorised Officer for our own use/business and that the information revealed by me/us in the Bid Document is true and correct to the best of my/our belief.
2. I/We declare that the EMD and other deposit towards purchase-price were made by me/us as against my/our offer and that the particulars of remittance given by me/us in the bid form are true and correct.
3. I/We further declare that the information revealed by me/us in the bid document is true and correct to the best of my/our belief. I/We understand and agree that if any of the statement/information revealed by me/us is found to be incorrect and/or untrue, the offer/bid submitted by me/us is liable to be cancelled and in such case, the EMD paid by me/us is liable to be forfeited by the Authorised Officer and that the Authorised Officer will be at liberty to annul the offer made to me/us at any point of time.
4. I/We understand that in the event of me/us being declared as successful bidder by the Authorised Officer in his sole discretion, I/We are unconditionally bound to comply with the Terms and Conditions of Sale. I/We also agree that if my/our bid for purchase of the asset/s is accepted by the Authorised Officer and thereafter if I/We fail to comply or act upon the terms and conditions

of the sale or am/are not able to complete the transaction within the time limit specified for any reason whatsoever and/or fail to fulfil any/all of the terms and conditions, the EMD and any other monies paid by me/us along with the bid and thereafter, is/are liable to be forfeited by the Authorised Officer.

5. I/We also agree that in the eventuality of forfeiture of the amount by Authorised Officer, the defaulting bidder shall neither have claim on the property nor on any part of the sum for which it may be subsequently sold.
6. I/We also understand that the EMD of all offeror/bidders shall be retained by _____ and returned only after the successful conclusion of the sale of the Assets. I/we state that I/We have fully understood the terms and conditions of auction and agree to be bound by the same.
7. I/We am solely responsible for all formalities and legal obligations related to the payment of stamp duty, registration of sale certificate, payment of sales tax, etc. leviable and payable as per the laws of the sale of Immovable property of Secured Asset. All the necessary taxes and expenses like stamp duty, registration expenses, sales tax, etc. for transfer of Secured Assets in my/our name will be paid by me/us.
8. **I/We are not a willful defaulter and/or related to the Borrower and/or Security Providers and I/We do not fall under the categories provided under Section 29A of the Insolvency and Bankruptcy Code, 2016 with the Borrower / Security Providers and the Secured Creditor.**
9. The decision taken by Authorised Officer in all respects shall be binding on me/us.
10. I also undertake to abide by the additional conditions if announced during the auction including the announcement of correcting and/or additions or deletions of times being offered for sale.

Signature:.....

Name:.....

Address:.....

E-mail id:.....

Contact No:.....

Note: This document is required to be duly filled in and signed by the bidder and thereafter uploaded on the website <https://sarfaesi.auctiontiger.net> during the time of submission of the bid.

Annexure – IV

Confirmation by Bidder Regarding Receipt of Training

To,

The Authorised Officer,

Catalyst Trusteeship Limited,

acting in its capacity as Debenture Trustee
in trust and for the benefit of Debenture
Holder viz. Edelweiss Asset Reconstruction
Company (Trustee of EARC Trust SC 462) at
GDA House, First Floor, Plot No. 85, S. No.
94 & 95, Bhusari Colony (Right), Kothrud,
Pune – 411038, Maharashtra and having its
corporate office at Unit No. 901, 9th Floor,
Tower – B, Peninsula Business Park,
Senapati Bapat Marg, Lower Parel (W),
Mumbai - 400013, Maharashtra.

Subject: Confirmation regarding receipt of e- Auction Training.

Dear Madam/ Sir,

This has reference to the Terms & Conditions for the e-Auction mentioned in the sale notice, Bid Document and available on the website <https://sarfaesi.auctiontiger.net>

I/We confirm that:

1. I/We have read and understood the Terms and Condition governing the e-Auction as mentioned in sale notice and Bid Document available on the website <https://sarfaesi.auctiontiger.net> and also e-Auction notice published by Catalyst Trusteeship Ltd. in daily newspapers and unconditionally agree to them.
2. I/We also confirm that we have taken training on the on-line bidding/auction and confirm that we are fully conversant with the functionality and process.
3. I/We confirm that bank and **E-Procurement Technologies Ltd -Auction Tiger**, shall not be liable & responsible in any manner whatsoever for my/our failure to access & bid on the e-Auction

platform due to loss of internet connectivity, electricity failure, virus attack, problems with the PC, any other unforeseen circumstances etc. before or during the auction event.

4. I/We, hereby confirm that we will honor the Bids placed by us during the e-Auction process.

With regards

Signature of the Bidder:

Name of Bidder:

Date:

Address of Bidder:

Note: This document is required to be duly filled in and signed by the bidder and thereafter upload on the website <https://sarfaesi.auctiontiger.net> just after availing training on e-Auction

Annexure – V

Price Confirmation Letter by Bidder(s)

To,

The Authorised Officer,

Catalyst Trusteeship Limited,

acting in its capacity as Debenture Trustee
in trust and for the benefit of Debenture
Holder viz. Edelweiss Asset Reconstruction
Company (Trustee of EARC Trust SC 462) at
GDA House, First Floor, Plot No. 85, S. No.
94 & 95, Bhusari Colony (Right), Kothrud,
Pune – 411038, Maharashtra and having its
corporate office at Unit No. 901, 9th Floor,
Tower – B, Peninsula Business Park,
Senapati Bapat Marg, Lower Parel (W),
Mumbai - 400013, Maharashtra.

Sub: Final bid quoted during e- Auction - Sale of Properties

Dear Madam/ Sir,

We confirm that we have quoted the highest bid of Rs. _____/-
(Rupees _____)
for the purchase of the Secured Asset (give description of
property _____) during e-Auction of the said property held by E-
Procurement Technologies Ltd -Auction Tiger on _____ (date of auction).

Yours sincerely,

Signature:

Name of Bidder:

Date:

Note: This document is required to be duly filled in and signed by the H1 bidder and thereafter e-mail scanned letter to the Authorised Officer, Edelweiss Asset Reconstruction Company Limited mentioned on the website <https://sarfaesi.auctiontiger.net> immediately on completion of the bidding.